

Bihar and Orissa Dangerous Drugs Rules, 1934

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State of Bihar - Act

Bihar and Orissa Dangerous Drugs Rules, 1934

BIHAR

India

Bihar and Orissa Dangerous Drugs Rules, 1934

Rule BIHAR-AND-ORISSA-DANGEROUS-DRUGS-RULES-1934 of 1934

Published on 22 December 1934

Commenced on 22 December 1934

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Bihar and Orissa Dangerous Drugs Rules, 1934

Published vide notification No. 8879-L.S.G. dated 22nd December, 1934

No. 8879-L.S.G. dated 22nd December, 1934. - In exercise of the powers conferred by sub-section (2) of Section 8 of the Dangerous Drugs Act, 1930 (II of 1930), the Government of Bihar and Orissa are pleased to make the following rules:-

1.

Short title.

- These Rules may be called the Bihar and Orissa Dangerous Drugs Rules, 1934.

2.

Definitions.

- In these Rules, unless there is anything repugnant in the subject or context,-

(a)

"the Act" means the Dangerous Drugs Act, 1930;

(b)

"Collector" means the chief officer in-charge of the revenue administration of the district for the time being and includes any officer specially authorised by the Board of Revenue, Bihar and Orissa, to exercise throughout the province or in any specified area therein all or any of the powers of a Collector under the rules;

(c)

"Approved practitioner" means-

(i)

any person registered as a medical practitioner under the Medical Act, 1858, and any Act, of Parliament amending the same, or under any law for the registration of medical practitioners for the time being in force in any part of British India,

(ii)

any person registered as a dentist under the Dentists Act, 1878, and any Act, of Parliament amending the same, or

(iii)

any person possessed of qualifications which render him eligible for registration as a medical practitioner or dentist, as the case maybe, under the Medical Act, 1858, the Dentists Act, 1878, and any Act of Parliament amending the same Acts, or under any law for the registration of a medical practitioner or dentists for the time being in force in any part of British India, and approved by the Collector for the purpose of these Rules, or of corresponding Rules for the time being in force in any part of British India,

(iv)

any person practising veterinary medicine and surgery who has obtained the diploma of a recognized Veterinary Institution,

(v)

any other person engaged in medical, dental or veterinary practice and approved by the Commissioner of Excise for the purpose of these Rules or of corresponding Rules for the time being in force in any part of British India;

(d)

"Dangerous medicinal drugs" means-

(i)

coca leaf,

(ii)

coca derivatives,

(iii)

medicinal hemp,

(iv)

opium derivatives other than prepared opium, and

(v)

notified drugs as defined in sub-clause (q) of this clause;

(e)

"Licensed chemist" means a person who has obtained a licence under these Rules for the sale on prescription of dangerous medicinal drugs and for the manufacture of medicinal opium or of preparations containing morphine, diacetylmorphine or cocaine from materials which he is lawfully entitled to possess;

(f)

"Licensed dealer" means a person who has obtained a licence under these Rules for the sale of dangerous medicinal drugs otherwise than on prescription, and for the manufacture of medicinal opium or of preparations containing morphine, diacetylmorphine or cocaine from materials which he is lawfully entitled to possess;

(g)

"Notified drugs" means any narcotic substance other than coca derivatives, medicinal hemp and opium derivatives which the Governor-General-in-Council may, by notification in the Gazette of India made in pursuance of a recommendation under Article 10 of the Geneva Convention, declare to be a manufactured drug;

(h)

"Prescription" means a prescription given by an approved practitioner for the supply of any dangerous medicinal drug to

a patient;

(i)

"Transmission" means-

(i)

to import inter-provincially into Bihar and Orissa,

(ii)

to export inter-provincially out of Bihar and Orissa, and

(iii)

"Form" means a form in the appendix to these Rules.

3.

Manufacture.

- A licensed dealer or chemist may, subject to the conditions of his licence, manufacture medicinal opium or any preparation containing morphine, diacetylmorphine or cocaine from materials which he may lawfully possess under these Rules.

4.

Possession.

- Any person may possess such quantity of dangerous medicinal drugs as has been at one time dispensed and sold to him for his own use in accordance with the provisions of Rule 20 or of corresponding rules for the time being in force in any part of British India, outside Bihar and Orissa subject in the case of coca leaves and coca derivatives to the maximum quantities noted below:-

Description of dangerous drugs

Quantity for veterinary practice

Quantity for other case

1

2

3

(a)

Coca leave

4 ounces

2 ounces

(b)

Crude cocaine

5 grains

10 grains except when certified in the same prescription to be required for purely surgical use external application,

(c)

Ecgonine or all drugs synthetic or otherwise having a like physiological effect to cocaine

Ditto

5 grains

ditto

(d)

Cocaine

Ditto

Ditto

(e)

Preparations containing more than 0.1 per cent of cocaine

The quantity of cocaine contained in the preparation should not exceed 10

Such quantity as shall be applicable to the class mentioned above to which the prescription belongs

5.

An approved practitioner may possess dangerous medicinal drugs for use in his practice but not for sale:

Provided that:-

(a)

he shall keep an accurate record of his dealings in such practice.

(b)

such record shall be made available for inspection to an excise officer of and above the rank of Sub-Inspector.

6.

An approved practitioner in charge of a hospital or dispensary authorized in this behalf by the Collector by an order made under Rule 22 may possess dangerous medicinal drugs for use in the hospital or dispensary in such manner as may be specified by such order.

7.

A licensed dealer or licensed chemist may possess in his licensed premises such quantity of dangerous medicinal drugs as may be specified in his licence.

8.

A person to whom a pass has been granted under these Rules for the transmission of dangerous medicinal drugs may possess such quantity of such drugs as may be specified in the pass.

9.

Transmission.

- Any person may transport or import inter-provincially dangerous medicinal drugs which he may lawfully possess under Rule 4.

10.

An approved practitioner not in charge of a hospital or dispensary may, subject to Rules 5, 16 and 17, import inter-provincially any dangerous medicinal drugs under a pass obtained from the Collector or the Superintendent of Excise.

11.

An approved practitioner in charge of a hospital or dispensary authorised in this behalf by the Collector by an order made under Rule 22 may subject to Rules 16 and 17, import inter-provincially or transport within Bihar and Orissa Dangerous Medicinal Drugs for use in the hospital or dispensary on an indent counter signed by:-

(i)

The Civil Surgeon of the district in which the hospital or dispensary is located, or

(ii)

The Chief Medical Officer of the Railway administration concerned, if the hospital or dispensary is maintained by any Railway, or

(iii)

The Chief Medical Officer of Health to the Jharia Mines Board of Health, if the hospital or dispensary is attached to a colliery within the Jharia Mining Settlement, or

(iv)

The Director, Deputy Director of the Civil Veterinary Department or the officer of that Department in charge of a range, if the person importing or transporting is in charge of a veterinary hospital.

12.

A licensed chemist or licensed dealer may, subject to Rules 16 and 17 transmit dangerous medicinal drugs for bona fide medicinal purpose under a pass obtained from the Collector:

Provided that such a pass shall not be granted for the transmission of any such drug in a quantity exceeding the quantity of such drug which such chemist or dealer may possess in his licensed premises in accordance with his licence.

13.

Nothing in these Rules shall be deemed to permit the import inter-provincially of any dangerous medicinal drugs unless the Rules for the time being in force relating to the export of such drugs in the Province or State from which the drugs are brought and the Rules regulating transmission in any other Province or State through which the drugs pass, have been complied with.

14.

A pass for export inter-provincially can be issued only on production of a permit from the officer authorised by the rules in force in the place of destination to issue permits for the import of dangerous medicinal drugs.

15.

A person may convey or cause to be conveyed dangerous medicinal drugs through Bihar and Orissa in transit between any two parts of India other than Bihar and Orissa, provided that-

(1)

he has obtained a pass covering the consignment-

(a)

from the Commissioner of Excise, in cases in which the destination is any of the Orissa (Feudatory) States,

(b)

in other cases, from the officer authorised by the Rules in force in the place of destination to issue passes for the import of dangerous medicinal drugs;

(2)

he sends the consignment in packages securely packed and sealed and does not open any such package during transit except on requisition from the Collector of the district or under orders under Section 95 of the Code of Criminal Procedure, 1898;

(3)

if the consignment is conveyed through any district or districts in Bihar and Orissa otherwise than as luggage with guard by rail or by insured post, he gives intimation thereof to the Collector of each district before the consignment enters that district.

16.

A person may transmit or cause to be transmitted dangerous medicinal drugs by post provided that:-

(1)

he has obtained a permit-

(a)

if the drugs are to be sent to any district in Bihar and Orissa, from the Collector or Superintendent of Excise of that district,

(b)

in all other cases, from the proper authorities in the Province or State to which the drugs are to be sent;

(2)

he uses only the parcel post and has the parcel insured;

(3)

he furnishes with the parcel a declaration stating the names of the consignor and consignee, the numbers and dates of licences held by them, the contents of the parcel in detail, the number and date of the permit covering the transmission and such other particulars as may be prescribed from time to time by the Excise Commissioner;

(4)

he shows distinctly in his account books the name of the consignee and the quantity of drugs sent to him by post.

17.

(1)

Every person transmitting dangerous medicinal drugs shall comply with such general or special direction as may be specified in any pass under which the transmission may be effected.

(2)

Every such pass shall be in Form D. D. 4.

18.

Sale.

- The Collector may grant to any person a licence for the sale of:-

(a)

all dangerous medicinal drugs, or

(b)

dangerous medicinal drugs other than coca leaf and coca derivatives.

19.

(1)

A licensed dealer may, subject to the condition of his licence, sell otherwise than on prescription:-

(a)

to a licensed dealer or to a licensed chemist,

(b)

to an approved practitioner for use in his practice,

(c)

to an approved practitioner in charge of a hospital or dispensary for use in the hospital or dispensary,

(d)

to any person authorised to purchase the drugs sold by the Rules in force in any part of British India other than Bihar and Orissa.

any dangerous medicinal drug in a quantity not exceeding the quantity which the purchaser may lawfully possess.

(2)

Every licensed dealer shall maintain a written record in Form D. D. 3 of the sale of any such drug and shall plainly mark:-

(a)

Every package or bottle containing ecognine, cocaine, morphine, diacetylmorphine, medicinal hemp or medicinal opium or their respective salts with the amount of the drugs in such package or bottle;

(b)

every package or bottle containing any extract preparation or admixture of any of the aforementioned drugs-

(i)

in the case of a powder, solution or ointment with the total amount thereof in the package or bottle and the percentage of the drug in the powder solution or ointment;

(ii)

in the case of the tablets or similar articles other than those mentioned in sub-clause (i) containing any of the aforementioned drugs, with the quantity of the drug contained in such tablet or article and the number of such tablets or articles in the package or bottle.

20.

(1)

A licensed chemist may sell dangerous medicinal drugs on prescription subject to the following conditions:-

(a)

(i)

The prescription shall be in writing and shall be dated and signed by the approved practitioner giving it with his full name, address and qualification and shall show the name and address of the person for whose use (or for the use of whose animal) the prescription is given and the total amount of the drug to be supplied.

(ii)

In the case of a prescription given by a dentist the prescription shall be for dental treatment only and shall bear the words "for local dental treatment only".

(iii)

In the case of a prescription given by a veterinary practitioner the prescription shall be for treatment of animals only and shall bear the words "for treatment of animals only".

(b)

A licensed chemist shall not dispense a prescription unless he is acquainted with the signature of the approved practitioner by whom it purports to have been given or is acquainted with the person or the family of the person for whose use, or for the use of whose animal the prescription purports to be given, and has no reason to suppose that the prescription is not genuine.

(c)

A licensed chemist shall date and sign a prescription at the time when he serves it.

(d)

A licensed chemist shall not serve coca leaves or coca derivatives more than once on the same prescription and shall retain every prescription authorizing the use of such drugs.

(e)

A licensed chemist shall not serve dangerous medicinal drugs other than coca leaves and coca derivatives more than once on the same prescription, unless it bears a superscription by the approved practitioner who prescribes it, stating that it is to be repeated and the intervals of time after which, and the number of times (not exceeding three) that it is to be repeated. In the absence of such a superscription, the prescription shall be retained by the licensed chemist after it has been served once.

If the prescription bears a superscription as aforesaid, it is to be retained by the licensed chemist only after it has been served for three times, or the number of times fewer than three mentioned in the prescription and in the meantime, the person serving it shall sign the prescription on every occasion that he serves it and note the date of every such occasion:

Provided that a prescription prescribed by an approved practitioner for his own use shall not in any case be dispensed more than once.

(f)

A licensed chemist shall not serve any prescription presented for repetition before the interval specified in the superscription has elapsed since the prescription was last dispensed.

(g)

A licensed chemist shall keep every prescription on the premises where he dispensed it and shall produce it for inspection by an officer of the Excise Department not below the rank of a Sub-Inspector of Excise.

(2)

A licensed chemist shall maintain a written record in Form D. D. 3 of every sale made by him under this rule.

21.

Approval, authorization, licences and passes.

(a)

The Commissioner of Excise may for purposes of sub-clause (v) of clause (c) of Rule 2 approve any person engaged in medical, dental or veterinary practice.

(b)

The Collector may approve any person possessed of the qualifications specified in sub-clause (iii) of clause (c) of Rule 2.

22.

The Collector may, with the sanction of the Commissioner of Excise by general or special order in Form D. D. 5, authorize any approved practitioner in charge of a hospital or dispensary to possess, import inter-provincially into Bihar and Orissa and transport within Bihar and Orissa dangerous medicinal drugs in such manner as may be specified in such order.

23.

(1)

The Collector may grant to any person a dealer's licence in Form D. D. 1 permitting him to sell dangerous medicinal drugs otherwise than on prescription and to manufacture medicinal opium or preparations containing morphine, diacetylmorphine or cocaine from materials which he is lawfully entitled to possess.

(2)

The Collector may grant to any person a chemist's licence in Form D.D. 2 permitting him to sell dangerous medicinal drugs on prescription and to manufacture medicinal opium or preparations containing morphine, diacetylmorphine or cocaine or cocaine from materials which he is lawfully entitled to possess.

(3)

A fee of rupee one shall be charged for the grant of any licence under sub-rules (1) and (2).

24.

(1)

Subject to any directions that the Commissioner may give in this behalf, the officer who has granted a licence to or has by order approved or authorized any person under these Rules- may cancel or suspend such licence or order,

(i)

if such person has-

(a)

failed to pay any duty or fee payable by him, or

(b)

by himself or by any servant or person acting on his behalf committed any breach of the conditions of such licence or order or of these rules, or

(c)

been convicted of any offence under the Act, or under the law for the time being in force relating to excise revenue, or of any criminal offence; or

(ii)

if it is a condition of such licence or order that it may be cancelled or suspended at the will of such officer; or

(iii)

in any other case not falling either under clause (i) or clause (ii) after giving to such person fifteen days notice; and shall cancel such licence or order within fifteen days of the receipt of a notice from such person that he desires to surrender the same.

(2)

When such licence or order is cancelled or suspended, such person shall forthwith make over to the Collector all dangerous medicinal drugs then in his possession.

25.

Disposal of drugs and confiscated articles.

- The Collector shall cause all dangerous medicinal drugs made over to him on cancellation or suspension of a licence or order, to be examined by the Chemical Examiner or by such other officer as the Commissioner may direct. If any such drugs are certified by such officer to be fit for use the Collector may sell them to any dealer or chemist licensed under these Rules or under any corresponding Rules for the time being in force in any other part of British India or to any person authorized by an order under Rule 22 or any corresponding Rules in force as aforesaid. The sale-proceeds of such drugs shall be paid to the person whose licence has been cancelled or suspended. The Collector may require any licensed dealer or chemist to purchase at such price as the Collector may direct any quantity of such drugs not exceeding such quantity as the Collector determine to be ordinarily saleable by him in two months. If any such drugs are certified by the officer aforesaid to be unfit for use the Collector shall cause them to be destroyed.

Note. - All dangerous medicinal drugs and all other articles confiscated under the Act, in connection with any offence relating to these Rules shall be disposed of in accordance with the rules framed by the Government of India.

26.

Issue of subsidiary orders.

- Subject to the provisions of the Act and of these Rules, the Commissioner of Excise may from time to time give such directions as it may think fit for the purpose of carrying out the provisions of these Rules.

27.

Appeal and revision.

(1)

An appeal shall lie to the Commissioner Excise from an order of a Collector under these Rules, if presented to the Commissioner of Excise or to the Collector for transmission to the Commissioner of Excise within thirty days from the date of the order:

Provided that every memorandum of appeal relating to cancellation, suspension or withdrawal of a licence for the retail sale of opium shall be submitted within 15 days from the date of the order appealed against to the Commissioner of Excises and Salt through the Collector against whose order the appeal is made. Such petition of appeal shall invariably be forwarded by the Collector to the Commissioner of Excises and Salt within 10 days of its presentation with the original records of the case, if any, and with any observations the officer forwarding it may wish to make thereon. The period for the presentation of appeal shall be counted from the date of the original orders and not from the date of rejection of any subsequent petition for revision.

(2)

A petition of appeal from or for revision of any order shall not be entertained unless it is accompanied by the original order or authenticated copy thereon or the omission to produce such order or copy is explained to the satisfaction of the authority to whom the petition is made.

28.

Exemptions.

- All preparations containing not more than 0.2 percent of morphine or 0.1 per cent of cocaine and any preparation which the Governor-General-in-Council may by notification in the Gazette of India made in pursuance of a finding under Article 8 of the Geneva Convention declare not to be a dangerous medicinal drug may be imported, exported, transported, possessed and sold without restriction.

29.

The provisions of these rules shall not apply to the importation, exportation transport, possession or sale of codeine, dionin and their respective salts, unless the quantity, involved in any transaction or possessed at any one time exceeds one pound.

Appendix

Form D.D. 1

Licence granted to a dealer for the manufacture, possession and sale otherwise than on prescription of dangerous medicinal drugs.

[See Rule 23(1)]

Number of licence.

Name and description of the person licensed.

Residence of the person licensed.

Place of business of the person licensed.

The person described above is hereby authorized by the Collector of..... to manufacture, possess and sell otherwise than on prescription dangerous medicinal drugs from the date of this licence to the 31st day of March, 19..... subject to the following conditions:-

Conditions

I. The licensee shall be bound by the provisions of the Dangerous Drugs Act, 1930 the Rules made by the Government of Bihar and Orissa under sub-section (2) of Section 8 of the Act, and may any additional, general or special rules which may be made from time to time.

II. This licence extends:-

(1)

to the manufacture of medicinal opium from opium which the licensee is lawfully entitled to possess,

(2)

to the manufacture of any preparation containing morphine, diacetylmorphine or cocaine from morphine, diacetyl morphine or cocaine which the licensee is lawfully entitled to possess, and

(3)

to the possession and the sale otherwise than on prescription of dangerous medicinal drugs.

III. The licensee shall not have in his possession at any one time:-

(a)

opium derivatives other than prepared opium containing in the aggregate not more than*.... of either morphine or diacetylmorphine or both;

(b)

coca derivatives containing in the aggregate not more than*.... of cocaine;

(c)

coca leaf upto*....

(d)

medicinal hemp upto*.... in the case of extract and*.... in the case of tincture;

(e)

any other narcotic substance declared to be a manufactured drug upto [.....]

[To be fixed by Collectors according to requirements.]

He shall obtain his supplies of drugs from a licensed dealer in the Province of Bihar and Orissa or from a dealer licensed under the corresponding rules for the time being in force in any other part of British India or by manufacture from drugs which he is lawfully entitled to possess subject to the provisions of Condition II of this licence. The licensee shall not receive or have in his possession drugs otherwise obtained. In the case of imports of manufactured drugs other than prepared opium from any part of British India outside the province of Bihar and Orissa, the licensee shall first apply to

the Collector stating the name and address of the firm from which he wishes to purchase the drugs, the description of the drugs with their bulk weight and drug contents and obtain in import, authorization before he indents for the drugs. If the Collector is satisfied that the drugs are required solely for medicinal purposes and that the licensee is authorized to possess the quantity of the drugs required he will grant an Import authorization.

IV. The transmission of dangerous medicinal drugs by inland post by the licensee for medicinal purposes is permitted subject to the following conditions:-

(1)

only the parcel post shall be used;

(2)

the parcels shall be insured;

(3)

the parcels shall be covered by permits which shall, in the case of transmission to a district within the province of Bihar and Orissa be issued by the Collector of that district and in other cases by the proper authorities in the Province or State to which the parcels are addressed;

(4)

the parcels shall be accompanied by a declaration stating the names of the consignee and the consignor, the contents of the parcels in details, the number and the date of the permit covering the transmission and the number of license held by the consignee; and

(5)

the consignee shall show distinctly in his account books the name of the consignor and the quantity of drugs sent to him from time to time by post.

V. The licensee shall not manufacture, possess, or sell dangerous medicinal drugs in virtue of this licence, at any place except his place of business specified above.

VI. The licensee shall mark every package or bottle containing dangerous medicinal drugs with the percentage or proportion or amount of opium, cannabis indicae, morphine diacetylmorphine or cocaine contained in the drugs.

VII. (1) The licensee may sell otherwise, that on prescription dangerous medicinal drugs only:-

(a)

to another dealer or chemist licensed under the rules made by the Government of Bihar and Orissa under sub-section (2) of Section 8 of the Dangerous Drugs Act, or under the corresponding rules for the time being in force in any part of British India outside the province of Bihar and Orissa;

(b)

to an approved practitioner for use in his practice;

(c)

to an approved practitioner in charge of a hospital or dispensary for use in the hospital or dispensary:

Provided that the drugs shall not be delivered to any person not licensed or otherwise authorized to be in possession of the drugs who purports to be sent by or on behalf of a person so licensed or authorized, unless an authority in writing, signed by the person so licensed or authorized, to receive the drugs on his behalf is produced and unless the licensed dealer is satisfied that the authority is genuine:

Provided further that he shall not in any case dispense more than once a prescription prescribed by an approved practitioner for his own use.

(2)

Such drugs shall be sold only in packages or bottles plainly marked with the amount of the drugs in each packing or bottle.

(3)

Any preparation, admixture, extract, other substance containing such drugs shall be sold only in package or bottles, plainly marked-

(a)

in the case of powder, solution or ointment, with the total amount thereof in each package or bottle and the percentage of the drug in the powder, solution or ointment; and

(b)

in the case of tablets or other articles, with the amount of the drug in each article, and the number of articles in each

package or bottle.

(4)

The licensee shall not be a party to the transport of any dangerous medicinal drugs from one licensed dealer's shop to another or to any licensed chemist's shop in the province of Bihar and Orissa unless it is covered by a permit granted by the Collector of the district to which the transport is made or by the licensed dealer from whose shop the drugs are transported.

VIII. The licensee shall, on requisition by the Collector or any other officer duly authorized by him, deliver up his licence for amendment or for the issue of a fresh licence.

IX. The licensee shall maintain true accounts of all transactions in Form D. D.-3 showing in respect of each receipt, the source of supply and the quantities received and in respect of each issue. To quantity issued and the name and address of the person to whom it is issued the accounts shall show separately the quantity of opium used in the manufacture of medicinal opium and the quantity of morphine, diacetylmorphine or cocaine used in the manufacture of preparations containing morphine, diacetylmorphine or cocaine. Such accounts shall be preserved for not less than two years from date of the last entry in the accounts.

X. The licensee shall furnish periodically to the Excise and Revenue Officer such statistics as they may require from time to time.

XI. The licensee shall file, in support of his accounts of receipts, the Customs receipts for duty paid, or the invoices of supplies obtained otherwise than by import by sea, and in support of his accounts of issue; a receipt from each person to whom an issue is made or the order on which such issue is made. Accounts of transactions under this licence shall be kept separate from those maintained by him under any other licence. At the end of each month totals should be struck showing separately the issues to (a) licensees including approved practitioners who hold licences, and (b) approved practitioners and others authorized to possess dangerous medicinal drugs.

XII. Stocks of dangerous medicinal drugs and all accounts and records of transactions under this licence shall be open to inspection by an officer of the Excise Department not below the rank of Sub-Inspector.

XIII. An inspection note-book with pages numbered consecutively shall be maintained for the use of inspecting officers and shall be handed over to the Excise Inspector of the circle or to any officer authorized by him to receive it on a receipt being given therefor. The book shall be preserved in good condition and handed over to the Excise Sub-Inspector at the end of the period for which the licence is in force.

XIV. In case of breach of any of the conditions of the licence, the Collector may cancel or suspend the licence or in lieu thereof impose a penalty not exceeding one hundred rupees.

XV. The imposition of a penalty or the cancellation or suspension of licence under the foregoing condition shall not operate as a bar to prosecution for any offence which may have been committed under the Dangerous Drugs Act, 1930.

XVI. If the licensee shall have in his possession on the expiry, cancellation, or suspension of his licence, any raw opium or dangerous medicinal drugs he shall deliver them up to the Collector.

XVII. The licensee shall be bound to purchase in such quantity not exceeding that which he is likely to sell in two months, and at such rates as the Collector may direct, any dangerous medicinal drugs that may be delivered up to the Collector by any other licensee whose licence has expired or has been cancelled or suspended.

XVIII. All preparations containing not more than 0.2 per cent of morphine or 0.1 per cent of cocaine and any preparation which the Governor-General-in-Council may by notification in the Gazette of India be issued in pursuance of a finding under Article 8 of the Geneva Convention declare not to be a manufactured drug, may be imported, exported, transported, possessed and sold without restriction.

XIX. Codeine and dionin may be imported, exported, transported, possessed or sold without restriction unless the quantity involved in any transaction or possessed at any one time exceeds one pound.

Dated the.....day of.....19.....

District Collector

* Specific measures to be determined by order.

Form D. D. 2

Licence granted to a chemist for the manufacture, possession and sale on prescription of dangerous medicinal drugs [other than coca leaf and coca derivatives]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

[See Rule 23(2)]

Number of licence.

Name and description of the person licensed.

His residence.

His place of business.

The person described above is hereby authorised by the Collector of to manufacture, possess and sell dangerous medicinal drugs [other than coca leaf and coca derivatives]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

on prescription from the date of this licence to the 31st day of March, 19....., subject to the following conditions:-

Conditions

I. The licensee shall be bound by the provisions of the Dangerous Drugs Act, 1930, the rules made by the Government of Bihar and Orissa under sub-section (2) of Section 8 of the Dangerous Drugs Act and any additional, general or special rules which may be made from time to time.

II. This licence extends-

(1)

to the manufacture of medicinal opium from opium which the licensee is lawfully entitled to possess;

(2)

to the manufacture of any preparation containing morphine, diacetylmorphine or cocaine from morphine, diacetylmorphine or cocaine which the licensee is lawfully entitled to possess; and

(3)

to the possession and sale on prescription of the dangerous medicinal drugs [other than coca leaf and coca derivatives]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

III. The licensee shall not have in his possession at any onetime-

(a)

opium derivatives other than prepared opium containing in the aggregate not more than [.....]

[To be fixed by Collectors according to requirements.]

of either morphine or diacetylmorphine or both;

(b)

coca derivatives containing in the aggregate not more than [.....]

[To be fixed by Collectors according to requirements.]

of cocaine;

(c)

medicinal hemp up to [.....]

[To be fixed by Collectors according to requirements.]

in the case of extract and [.....]

[To be fixed by Collectors according to requirements.]

in the case of tincture;

(d)

any other narcotic substance declared to be manufactured drug upto [.....]

[To be fixed by Collectors according to requirements.]

He shall obtain his supplies of drugs from a licensed dealer in the province of Bihar and Orissa or from a dealer licensed under the corresponding rules for the time being in force in any other part of British India or by manufacture from drugs which he is lawfully entitled to possess subject to the provisions of Condition II of this licence. The licensee shall not receive or have in his possession drugs otherwise obtained. In the case of imports of dangerous medicinal drugs [other than coca leaf and coca derivatives]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

from any part of British India outside the province of Bihar and Orissa, the licensee shall first apply to the Collector stating the name and address of the firm from which he wishes to purchase the drugs, the description of the drugs with their bulk weight and drug contents and obtain an import authorization before he indents for the drugs. If the Collector is satisfied that the drugs are required solely for medicinal purposes and that licensee is authorized to possess the quantity of the drugs required he will grant an import authorization.

IV. The transmission of dangerous medicinal drugs [other than coca leaf and coca derivatives]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

by inland post by the licensee for medicinal purposes is permitted subject to the following conditions:-

(1)

only the parcel post shall be used;

(2)

the parcels shall be insured;

(3)

the parcels shall be covered by permits which shall, in the case of transmission to a district within the province of Bihar and Orissa, be issued by the Collector of that district and in other cases by the proper authorities in the Province or State to which the parcels are addressed;

(4)

the parcels shall be accompanied by a declaration stating the names of the consignee and the consignor, the content of the parcels in detail, the number and date of the permit covering the transmission and the number of the licence held by the consignee; and

(5)

the consignee shall show distinctly in his account books the name of the consignor and the quantity of drugs sent to him from time to time by post.

V. The licensee shall not manufacture, possess or sell dangerous medicinal drugs [other than coca leaf and coca derivatives]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

in virtue of this licence, at any place except his place of business specified above.

VI. The licensee shall mark every package or bottle containing dangerous drugs [other than coca leaf and coca derivatives]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

with the percentage or proportion or amount of opium, cannabis indicae, morphine, diacetylmorphine or cocaine, contained in the drugs.

VII. The licensee may sell dangerous medicinal drugs [other than coca leaf and coca derivatives]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

only on prescription and subject to the following conditions, namely:-

(a)

he shall sell the drugs in such quantity and for use of such person only as may be specified in the prescription;

(b)

he shall sell the drugs only once on a prescription, unless it bears a superscription by an approved practitioner stating that it is to be repeated and at what intervals of time and how many times it is to be repeated:

Provided that if it appears that the drugs have already been sold on the prescription three times or such number of times less than three as the prescription is required to be repeated or that the interval specified in the superscription has not elapsed since it was last dispensed, he shall not sell the drugs on such prescription except on a further superscription in that behalf by an approved practitioner:

Provided further that he shall not in any case dispense more than once a prescription prescribed by an approved practitioner for his own use; and

(c)

he shall, on the first sale on a prescription, take and keep a copy of it, and, on the occasion of each sale thereon, he shall enter on the prescription the date of the sale and shall also sign and seal it.

VIII. A prescription for the supply of dangerous medicinal drugs [other than coca leaf and coca derivatives]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

shall comply with the following conditions:-

(1)

the prescription shall be in writing, shall be dated and signed by the approved practitioner with his full name and address and qualifications and shall specify the name and address of the person for whose use the prescription is given and the total amount of the drug to be supplied on the prescription, provided that where the medicine to be supplied on the prescription is a proprietary medicine it shall be sufficient to state the amount of the medicine to be supplied;

(2)

a registered dentist shall give a prescription only for the purpose of dental treatment and shall mark it "For local dental treatment only"; and

(3)

a registered veterinary surgeon shall give a prescription only for the purpose of treatment of animals and shall mark it "For animal treatment only".

IX. The licensee shall, on requisition by the Collector or any other officer duly authorized by him, deliver up his licence for amendment or for the issue of a fresh licence.

X. The licensee shall maintain true accounts of all transactions in Form D. D. 3 showing in respect of each receipt the source of supply and the quantity received and in respect of each issue the quantity issued, the name and address of the person to whom it is issued and the name of the practitioner on whose prescription it is issued. The account shall show separately the quantity of opium used in the manufacture of medicinal opium and the quantity of morphine, diacetylmorphine, or cocaine used in the manufacture of preparations containing morphine, diacetylmorphine or cocaine. Such accounts shall be preserved for not less than two years from date of the last entry in the accounts. Accounts of transactions under this licence shall be kept separate from those maintained by him under any other licence.

XI. The licensee shall furnish periodically to the Excise and Revenue Officers such statistics as they may require from time to time.

XII. The licensee shall file, in support of his account of receipts, the customs receipts for the duty paid or the invoices of supplies obtained otherwise than by import by sea, and, in support of his accounts of issues, copies of the prescriptions on which such issues are made.

XIII. Stocks of dangerous medicinal drugs [other than coca leaf and coca derivatives]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

and all accounts and record of transactions under this licence shall be open to inspection by an officer of the Excise Department not below the rank of Sub-Inspector.

XIV. An inspection note book with pages numbered consecutively shall be maintained for the use of inspecting officers and shall be handed over to the Inspector of the circle or to any officer authorized by him to receive it on a receipt being given therefor. The book shall be preserved in good condition and handed over to the Excise Sub-Inspector at the end of the period for which the licence is in force.

XV. In case of breach of any of the conditions of the licence, the Collector may cancel or suspend the licence or in lieu thereof impose a penalty not exceeding one hundred rupees.

XVI. The imposition of a penalty or the cancellation or suspension of the licence under the foregoing condition shall not operate as a bar to prosecution for any offence which may have been committed under the Dangerous Drugs Act, 1930.

XVII. If the licensee shall have in his possession on the expiry cancellation or suspension of his licence any raw opium or dangerous medicinal drugs [other than coca leaf and coca derivatives,]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

he shall deliver them up to the Collector.

XVIII. The licensee shall be bound to purchase in such quantity not exceeding that which he is likely to sell in two months, and at such rates as the Collector may direct, any dangerous medicinal drugs [other than coca leaf and coca

derivatives,]

[The words 'other than coca leaf and coca derivatives' should be deleted in case of a licence granted under Rule 18(a) for the sale of all dangerous medicinal drugs.]

that may be delivered up to the Collector by any other licensee whose licence has expired or has been cancelled or suspended.

XIX. All preparations containing not more than 0.2 percent of morphine or 0.1 per cent of cocaine and any preparation which the Governor-General-in-Council may by notification in the Gazette of India made in pursuance of a finding under Article 8 of the Geneva Convention declare not to be a manufactured drug, may be imported, exported, transported, possessed and sold without restriction.

XX. Codeine and dionin may be imported, exported, transported, possessed or sold without restriction unless the quantity involved in any transaction or possessed at any one time exceeds one pound.

Dated the.....day.....of.....19.....

District Collector

Form D. D. 3

Form of Accounts to be maintained by D. D. 1 and D. D. 2 Licensees

[See Rule 19(2) and 20(2)]

Month and date

Particulars of Transaction receipts, issues,
total, balance, etc.

Raw opium

Medicinal Opium

Opium derivatives other than prepared opium.

Opium in the form of tinctures, extracts and
such other preparations containing more than 0.2% of morphine,
as are made direct from opium.

Morphine, pure morphine salts of morphine and
such preparations containing more than 0.2% of morphine are made
direct from morphine.

Diacetyl-morphine (diamorphine boroin) pure
diacetyl-morphine, salts of diacetyl-morphine and all the
preparations containing diacetyl-morphine

Description

Bulk weight

Drug contents

Description

Bulk weight

Drug contents

Description

Bulk weight

Drug contents

Crude cocaine

Ecgonine

1

2

3

4

5

6

7

8

9

10
11
12
13
14
15
16
17
18
19
20
21
22
23
24

Stock on boardReceiptsTotalIssuesBalance

????...

lb.oz.

lb.oz.

...

lb.oz

gr.

...

lb.oz

gr.

...

lb.oz

gr.

lb.oz.

lb.oz.

Coca derivativer.

Medical Hemp

Cocaine, pure cocaine salts of cocaine, and such
preparations containing more than 1.1% of cocaine as are made
direct from cocaine.

Cocaine and such preparations containing more
than 0.% of cocaine as are made direct from coca leaf.

Extract of Hemp

Tincture of Hemp

Description

Bulk weight

Drug contents

Description

Bulk weight

Drug contents

Description

Bulk weight

Drug contents

Description

Bulk weight

Drug contents

25

26

27

...

lb.oz

gr.

...

lb.oz

gr.

...

lb.oz

gr.

...

lb.oz

gr.

Other narcotic substances declared to be
manufactured drugs

Renzoyl morphine and all other esters of morphine
and their salts and preparations

Dihydro morphine (delandide) and its salts and
preparations

Dihydro codeinone (dicodide) and its salts and
preparations

Dihydro-oxy-codeinone (Eucodal) its salts and
preparations

Acedicone

No. and date of customs receipts for duty paid in
case of imports by sea and invoice no. and date in the case of
supply obtained otherwise.

To whom sold, No. and name of the licence-holder
and name and address in the case of others.

Name of the Practitioners on whose prescription
of issue is made

Description

Quantity

Description

Quantity

Description

Quantity

Description

Quantity

28

29

30

31

32

33

34

35

36

37

38

39

...

lb.oz.gr.

...

lb.oz.gr.

...

lb.oz.gr.

...

lb.oz.gr.

...

?

?

...

Note - Particulars of the quantity of opium used in the manufacture of medicinal opium and the quantity of morphine, diacetylmorphine or cocaine used in the manufacture of preparations containing morphine diacetylmorphine or cocaine should be shown separately against issues.

Form D. D. 4

(See Rule 17)

Counterfoil

Form of Pass for the transmission

of (here enter name of drug)..... (To be issued quadruplicate, one copy being kept as a counterfoil in the office of issue, another to be returned by the consignor to the Deputy

Deputy Commissioner

Collector of the district to which the consignment is sent after noting the details of the drugs consigned in the form on the back of the foil, the third to be sent to the authority of the exporting district, and the fourth to accompany the consignment).

Pass granted to (here enter name of consignee)..... import from..... export to..... transport from or via (enter localities and district)..... into.....from (here state district) to dangerous medicinal drugs coca leaf.

(other than prepared opium) to as specified below:-

.....

The amount of (here state description and weight or quantity of each kind of drug).

(One ounce equals 437.5 grains avoirdupois.)

This pass must be used within one month from the date of its issue. The duplicate shall be returned by the consignor after the despatch of the consignment to the Collector

Deputy Commissioner

Collector

..... (here enter district)

The bulk of the consignment shall not be broken in transit.

Place

Date

COLLECTOR.

.....

[Here enter the kind of drug

allowed to be imported exported] transported,-

e. g., (1) coca derivatives and

coca leaf, (2) medicinal hemp, (3) medicinal opium, or (4)

morphine, diacetylmorphine (official or non-official

preparations) as the case may be. They should be entered on the

licence and the duplicate and triplicate copies thereof also.]

Details of consignment.

The drugs specified below-

have this day the 19....

been despatched by..... (mode of conveyance) in..... (State

number and description of packages).

Description of drug.

Quantity of weight.

Packages.

Place.

Signature of consignor)

Form D. D. 4

(See Rule 17)

Duplicate No.

Form of Pass for the transmission

of (here enter name of drug) :..... (To be returned by
the consignor to the Collector.

Deputy Commissioner.

Collector of the district to which

the consignment is sent after noting details of the drugs
consigned in the form on the back of this foil).

Pass granted to (here enter name of

consignee)..... import from..... export to..... or

via transport from..... (here enter locality and

district)..... into (from (here state district) to dangerous
medicinal drugs coca leaf.

(other than prepared opium) to

specified below:-

.....

The amount of (here state

description and weight or quantity of each kind of drug).

(One ounce equals 437.5 grains

avoirdupois).

This pass must be used within one

month from the date of its issue. The duplicate shall be returned
by the consignor after the despatch of the consignment to the
Collector.

Deputy Commissioner

Collector

..... (here enter

district)

This bulk of the consignment shall
not be broken in transit.

Place

Date

COLLECTOR

From overleaf to be filled up,
signed and dated by the consignor and this duplicate 'to' be
returned to the Collector

Deputy Commissioner

Collector

No.

Dated the..... 19.

Copy is forwarded to the.....
for information.

Place

COLLECTOR

FORM D. D. 4

(SeeRule 17)

Triplicate No.

Form of Pass for the transmission
of (here enter name of drug)..... (To be sent to the
authority of the exporting district)

Pass granted to (here enter name of
consignee)..... import from export to or via (here enter
locality and district) transport from (from into from to).....
dangerous medicinal drugs coca leaf.
(other than prepared opium) to the
amount as specified below:-

..... of (here state
description and weight or quantity of each kind of
drug).....

(One ounce equals 437.5 grains
avoirdupois).

This pass must be used within one
month from the date of its issue. The bulk of the consignment
shall not be broken in transit.

Place.

Date.

COLLECTOR.

FORM D.D. 4

(SeeRule 17)

Pass

Form of Pass for the transmission
of (here enter name of drug)..... To accompany the
consignment pass granted to (here enter name of
consignee)..... import from export to or via here (enter
export) to..... into from (here state district) to.....
dangerous medicinal drugs coca leaf.

(other than prepared opium) to the
amount as specified below:-

amount of..... (Here state

description and weight or quantity of each kind of drug).

(one ounce equals 437.5 grains

avoirdupois).

This pass must be used within one

month from the date of its issue. The duplicate shall be returned

by the consignor after despatch of the consignment to the

Collector.

Deputy Commissioner.

Collector.

..... (here enter

district)

The bulk of the consignment shall

not be broken in transit.

Place

Date

COLLECTOR

From overleaf to be filled up,

signed and dated by the consignor before the consignment leaves

his premises.

Advice of consignment of dangerous

medicinal drugs.

The drugs specified below have this

day, the 19 been despatched by (mode of

conveyance)..... in charge of in (state number and

description of packages).....

Description of drugs.

Quantity of weight.

Packages.

Date.

Signature of consignor)

Forwarded to the Collector.

.....

Form D. D. 5

(See Rule 22)

Order under Rule 22 of the Rules made by the Government of Bihar and Orissa under sub-section (2) of Section 8 of the Dangerous Drugs Act authorising an approved practitioner in managing or supervising charge of a hospital or dispensary to possess, import and transport dangerous medicinal drugs.

District

Number of authorisation in Register

Name of approved practitioner

Locality..... resident of..... an approved practitioner in managing or,..... supervising charge of a hospital/dispensary at..... is hereby authorized to possess, import and transport dangerous medicinal drugs for use for medicinal purposes only in the said hospital/dispensary from.....to the 31st March, 19.

It is required of the holder of this order as a condition of its remaining in force that he duly and faithfully perform and abide by the following condition:-

I. That he does not transfer this order to any other person.

II. That he use dangerous medicinal drugs for medicinal purposes only and only in the premises for which this order is granted and that he does not use dangerous medicinal drugs in and other place without a separate order.

III. That he does not sell dangerous medicinal drugs to any one.

IV. That he does not obtain dangerous medicinal drugs from a licensed chemist on his own prescription, but that he obtain all dangerous medicinal drugs to be possessed under this order from a dealer licensed under the Rules made by

the Government of Bihar and Orissa under sub-section (2) of Section 8 of the Dangerous Drugs Act or under corresponding rules for the time being in force in any part of British India outside Bihar and Orissa.

V. That if he desires to import or transport dangerous medicinal drugs from any place in British India to the premises named therein he obtain on each occasion on which he desires to import or transport dangerous medicinal drugs the counter-signature of the Chief Medical Officer, Civil Surgeon and Superintendent of the Civil Veterinary Department, on the indent for the same.

Note. - The Chief Sanitary Officer to the Jharia Mines Board of Health shall be deemed to be the Civil Surgeon of the district in respect of a Charitable Hospital attached to a colliery in the Jharia Mining Settlement and holding an order of authorization in Form D.D. 5 for the use of dangerous medicinal drugs for medicinal purposes only.

VI. That he does not store any dangerous medicinal drugs to be used under this order in any premises other than those named therein.

VII. That he keeps an account of all dangerous medicinal drugs received and used by him that he at all times afford facility for the inspection of such account and of his stock of dangerous medicinal drugs by the Collector, the Civil Surgeon the Superintendent of Excise, or any officer authorized by the Collector or the Civil Surgeon, to inspect the same.

Collectorate of -----

The-----19.....

Collector

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Translation